

Venkatesham S/O Beerappa And Anr vs The State Of Karnataka And Anr on 25 May, 2023

Author: Hemant Chandangoudar

Bench: Hemant Chandangoudar

-1-

CRL.P No. 201281 of 2022

IN THE HIGH COURT OF KARNATAKA, KALABURAGI BENCH
DATED THIS THE 25TH DAY OF MAY, 2023
BEFORE
THE HON'BLE MR JUSTICE HEMANT CHANDANGOUDAR
CRIMINAL PETITION NO. 201281 OF 2022 (482-)

BETWEEN:

1. VENKATESHAM S/O BEERAPPA AND ANR
AGE 36 YEARS, OCC. GOVT TEACHER, R/O
KONCHAVRAM VILLAGE, TQ CHINCHOLI, DIST
KALABURAGI 585102
2. BEERANNA S/O
OCC AGRICULTURE, R/O KONCHAVARAM VILLAGE,
TQ CHINCHOLI DIST KALABURAGI

...PETITIONERS

(BY SRI. CHAITANYAKUMAR CHANDRIKI., ADVOCATE)

AND:

1. THE STATE OF KARNATAKA AND ANR
THROUGH KALABURAGI WOMEN POLICE STATION,
KALBURAGI, REPTD BY ITS ADDL. SPP HIGH COURT
OF KARNATAKA, KALABURAGI BENCH 585102

Digitally signed
by LUCYGRACE
Location: High
Court of
Karnataka

2. YALLAMMA W/O VENKATESHAM
AGE 33 YEARS, OCC. HOSUEHOLD, R/O VEERESHA
NAGAR TQ AND DIST KALABURAGI 585102

...RESPONDENTS

(BY SRI SHARANABASAPPA M PATIL, HCGP FOR R1,
SRI A A GUNNAPUR, ADVOCATE FOR R2)

CRL.P FILED U/S.482 OF CR.P.C. BY THE ADVOCATE FOR
THE PETITIONER PRAYING THAT THIS HONOURABLE COURT
MAY BE PLEASED TO, QUASH FIR, COMPLAINT DATED
25.08.2022 REGISTERED AGAINST PETITIONERS IN CRIME

NO.0035/2022 REGISTERED BY WOMEN POLICE STATION
KALABURAGI FOR AN OFFENCE U/SEC. 498(A), 323, 504, 506

-2-

CRL.P No. 201281 of 2022

R/W 34 IPC PENDING ON THE FILE OF II ADDL. CIVIL JUDGE (JR.DN) AND JMFC AT KALABURAGI, IN THE INTEREST OF JUSTICE AND EQUITY. I.A.1/2022 FOR STAY I.A.1/2022 FILED U/S.482 OF CR.P.C.PRAYING TO PASS AN INTERIM ORDER THEREBY STAYING ALL THE FURTHER PROCEEDINGS IN CRIME NO.35/2022, REGISTERED BY WOMEN POLICE STATION PASSED KALABURAGI PENDING ON THE FILE OF II ADDL. CIVIL JUDGE (JNR.DN) AND JMFC AT KALABURAGI IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

The petitioners have been charge sheeted for the offences punishable under Sections 498A, 323, 504, 506 read with Section 34 of IPC.

2. The summary of the charge sheet is that, the defacto complainant is legally wedded wife of accused No.1, and accused No.2 is the father-in-law, and their marriage was solemnized on 28.2.2019. The accused herein subjected the defacto complainant to cruelty, both mentally and physically, and abused her in filthy language. On 24.6.2021, the accused herein after abusing her in filthy language threw her out from the matrimonial home, and left with no option, she started residing in her parental home.

3. Heard the learned counsel for the petitioners - accused and the learned High Court Government Pleader for respondent No.1 - State and the learned counsel for the respondent No.2.

4. The accused No.1 had filed a petition under Section 13(1)(ia)(ib) of Hindu Marriage Act, 1955 for dissolving the marriage with the defacto complainant on the ground of cruelty in MC No.122/2020. After receiving the notice in the said petition from the jurisdictional Family Court, the defacto complainant lodged the FIR on 25.8.2022, which clearly implies that the dispute between the parties arises out of marital discord, however, given criminal texture with an ulterior motive to wreak vengeance against the petitioners-accused and with revengeful intent. Perusal of FIR and the charge sheet material discloses that except omnibus and general allegation, there is no specific allegation as to how and in what manner each of the accused abused her in filthy language and meted out cruelty to the defacto complainant.

5. The Hon'ble apex court in *Kahkashan Kausar v. State of Bihar*, (2022) 6 SCC 599 has held that the relatives of the husband should not be roped in on the basis of omnibus allegations unless specific instances of their involvement in the crime are made out. In the present case, there is no specific

allegation against accused no.2-father-in-law except general and omnibus allegations to constitute the above offences.

6. The petition for dissolving the marriage was filed on 10.7.2020, and in the FIR, it was alleged that she was thrown out from the matrimonial home on 24.6.2021, and thereafter the defacto complainant lodged the FIR on 25.8.2022 without offering any plausible explanation.

7. Hence, I am of the considered view that the continuation of criminal proceedings will be an abuse of process of law, since the probability of conviction of the accused is remote and bleak. Accordingly, I pass the following:

ORDER

i) Criminal petition is allowed.

ii) The impugned FIR in Crime No.0035/2022 registered by the Women Police Station, Kalabuaragi, is hereby quashed.

Sd/-

JUDGE BKM